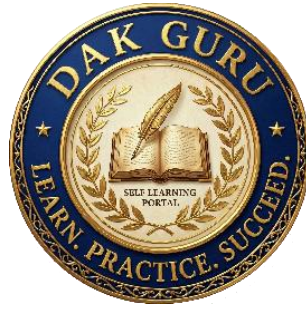




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Brochure on Casual Labourers

Grant of Temporary Status • Benefits • Regularisation

Study Material for LDCE / Departmental Examinations

DISCLAIMER

This booklet has been prepared strictly for examination preparation. Every effort has been made to ensure accuracy and to reflect the latest amendments, notifications, and circulars in force. It is, however, a study aid only. Readers are strongly advised to consult the original Government Orders, Rules, and Gazette notifications for the most authoritative position before relying on any provision for official use.

Content reviewed, corrected, and verified as on June 2026.

1. Understanding the Topic – A Quick Orientation

A “casual labourer” is a person engaged on daily wages to perform work that is casual, seasonal, or intermittent in nature, for which a regular post cannot be created. Such a worker holds no post, has no security of tenure, and is paid only for the days actually worked. To protect long-serving casual workers from arbitrary removal and to give them a route into regular service, the Government framed a special scheme in 1993.

Three ideas run through this entire topic. Keep them clearly separated, because examiners often test the difference between them: **(i) plain casual engagement** – the ordinary daily-wage worker; **(ii) temporary status** – a protected category earned by a casual labourer who meets the qualifying service; and **(iii) regularisation** – final absorption into a regular post (Multi Tasking Staff) through the recruitment rules.

A casual labourer who has earned the protected category is referred to throughout this booklet as a **Casual Labourer with Temporary Status (CL-TS)**.

Stage	What it means in practice
Casual labourer	Daily-wage worker; no post, no tenure; paid only for days worked.
Temporary status (CL-TS)	Protected status earned after the qualifying service; brings defined benefits and protection against removal, but is still not a regular post.
Regularisation	Final appointment as Multi Tasking Staff (MTS) through the Recruitment Rules; only then does the person hold a regular civil post.

2. The Casual Labourers (Grant of Temporary Status and Regularisation) Scheme, 1993

2.1 Origin and legal basis

The Scheme did not arise on its own — it was framed to comply with a judgment of the Central Administrative Tribunal (CAT), Principal Bench, dated 16 February 1990 in *Raj Kamal & Others vs. Union of India*. Acting on that judgment, the Department of Personnel & Training (DoP&T) issued the Scheme through **O.M. No. 51016/2/90-Estt.(C) dated 10 September 1993**.

2.2 Title and commencement

The Scheme is formally called the “*Casual Labourers (Grant of Temporary Status and Regularisation) Scheme of Government of India, 1993.*” It came into force with effect from **1 September 1993**, and was notified on **10 September 1993**.

2.3 Applicability — and where the Department of Posts stands

The Scheme applies to casual labourers in the employment of the Ministries and Departments of the Government of India and their attached and subordinate offices, as on the date of issue of the orders.

IMPORTANT — position of the Department of Posts

The 1993 central Scheme expressly does **not** apply to casual workers of the **Railways, the Department of Telecommunications, and the Department of Posts**, because these Departments operated their own analogous schemes. In the Department of Posts, fresh engagement of casual labourers has long been banned: **DoP O.M. No. 2-10/88-PE-I dated 4 February 1997** imposed a complete ban on creation and recruitment of casual labourers and required prior approval of the Directorate for any engagement. This was reiterated by **DoP O.M. No. 2-1/2002-PE-I dated 14 February 2002**.

For examination purposes the benefits and conditions described below are studied from the 1993 Scheme, because the Department of Posts extended substantially the same benefits to its own casual labourers with temporary status. The **regularisation route**, however, is governed by the Department’s own Multi Tasking Staff Recruitment Rules — explained in detail in Section 7.

2.4 A one-time measure — not an ongoing scheme

The Scheme is a closed, one-time measure. Temporary status can be conferred only on those casual labourers who were already in employment on the commencement date and who fulfil the qualifying-service condition. The Supreme Court confirmed this in *Union of India & Anr. vs. Mohan Pal* [SLP (Civil) No. 2224/2000], holding that the Scheme of 10 September 1993 is **not** an ongoing scheme, while clarifying that those already granted temporary status on the assumption that it was ongoing would not be stripped of it.

2.5 Conferment of temporary status — conditions

Temporary status was conferred on a casual labourer who satisfied **both** of the following as on the date of issue of the Scheme:

1. was in employment on the date of issue (10 September 1993); and
2. had rendered **continuous service of at least one year**, which means engagement for at least **240 days** — or **206 days** in offices observing a five-day week.

Key features of the temporary status:

- It is granted irrespective of the creation or availability of a regular MTS post.
- It involves no change in the worker's duties and responsibilities; engagement continues on daily rates, on a need basis.
- It does not, by itself, bring the worker on to the permanent establishment — that happens only through regular selection as MTS.
- No age limit is prescribed for *grant* of temporary status; age and other conditions apply only at the later stage of *regularisation*.

3. Benefits Flowing from Temporary Status

Once temporary status is conferred, the casual labourer becomes entitled to the following benefits. The benefits are summarised in the table at the end of this section for quick revision.

3.1 Wages

Wages are paid at daily rates worked out with reference to the minimum of the pay applicable to a corresponding regular MTS official, together with Dearness Allowance (DA) and House Rent Allowance (HRA).

3.2 Increments

The benefit of increments, at the same rate as applicable to a regular MTS employee, is taken into account for calculating pro-rata wages for every **one year of service**, subject to performance of duty for at least **240 days** (206 days in offices observing a five-day week) in that year, reckoned from the date of conferment of temporary status.

3.3 Leave

Leave is earned on a pro-rata basis at the rate of **one day for every ten days of work**. Casual leave and other kinds of leave are **not** admissible (maternity leave being the exception). The leave standing to credit may be carried forward on regularisation, but there is **no encashment** of leave on termination of service for any reason, or on the worker quitting service.

3.4 Maternity leave

A female casual labourer with temporary status is entitled to maternity leave as admissible to regular government servants.

UPDATED & VERIFIED

For Central Government employees, maternity leave is governed by **Rule 43 of the CCS (Leave) Rules, 1972**, under which a female government servant with fewer than two

surviving children may be granted maternity leave of **180 days** (and up to 45 days in case of miscarriage/abortion). The 180-day entitlement has applied since 1 September 2008.

Note: the figure of 26 weeks under the Maternity Benefit (Amendment) Act, 2017 relates to female workers in private/notified establishments. The governing provision for Central Government staff — and therefore for casual labourers with temporary status, who get the same benefit as regular employees — is **Rule 43 of the CCS (Leave) Rules (180 days)**, not the 2017 Act.

3.5 Paternity leave

A male casual labourer with temporary status and with fewer than **two surviving children** may be granted **paternity leave of 15 days** during the confinement of his wife (up to 15 days before, or up to six months from, the date of delivery). During this leave he is paid the wages drawn immediately before proceeding on leave. The leave is **not debited** to the leave account and may be combined with the pro-rata earned leave admissible under the 1993 Scheme. This mirrors **Rule 43-A of the CCS (Leave) Rules, 1972**.

3.6 Retirement benefits

On regularisation, **50% of the service** rendered under temporary status is counted for the purpose of retirement benefits.

3.7 General Provident Fund and advances

After rendering **three years of continuous service** following conferment of temporary status, a casual labourer is treated on par with a temporary MTS (erstwhile Group 'D') employee for the purpose of contribution to the **General Provident Fund (GPF)**, and becomes eligible for grant of Festival Advance / Flood Advance on the same conditions as a temporary MTS employee — provided he furnishes **two sureties** from permanent Government servants of his Department.

UPDATED & VERIFIED — pension position after regularisation

GPF applies only to those covered by the old pension framework. For anyone **regularised / first appointed on or after 1 January 2004**, the default is the **National Pension System (NPS)**, not GPF. Two later developments must be kept in mind:

- **One-time option for old pension:** by DoP&PW O.M. dated 3 March 2023, certain employees recruited against posts/vacancies advertised or notified for recruitment **before the date NPS was notified (22 December 2003)** were given a one-time option to be covered under the CCS (Pension) Rules instead of NPS.
- **Unified Pension Scheme (UPS):** a new option under NPS, **operational from 1 April 2025** (notified by the Department of Financial Services on 24 January 2025; CCS (Implementation of the UPS under NPS) Rules, 2025; PFRDA operationalisation

regulations dated 19 March 2025). UPS offers an assured pension of 50% of the average basic pay of the last 12 months for those with at least 25 years of qualifying service. The window for existing employees to opt was up to 30 November 2025.

3.8 Bonus

Until they are regularised, casual labourers with temporary status are entitled to Productivity Linked Bonus / ad-hoc bonus only at the rates applicable to casual labourers.

Benefits at a glance

Benefit	Entitlement on temporary status
Wages	Daily rate = minimum of corresponding MTS (Level 1) pay + DA + HRA.
Increments	As for MTS, for every year of service (min. 240 / 206 days).
Earned leave	1 day for every 10 days worked; credited twice a year; no encashment.
Maternity leave	180 days — Rule 43, CCS (Leave) Rules.
Paternity leave	15 days — Rule 43-A, CCS (Leave) Rules (fewer than 2 surviving children).
Retirement benefit	50% of temporary-status service counted after regularisation.
GPF & advances	After 3 years; on par with temporary MTS; two sureties required.
Bonus	PLB / ad-hoc bonus at casual-labourer rates until regularised.

4. Additional Benefits Extended to CL-TS After 1993

Over the years, DoP&T extended a few further benefits to casual labourers with temporary status, in continuation of the 1993 Scheme.

4.1 Transport Allowance

The benefit of Transport Allowance was extended to casual labourers with temporary status by DoP&T O.M. No. 49014/3/97-Estt.(C) dated 1 August 1998. Physically handicapped casual labourers with temporary status are entitled to Transport Allowance at **double the normal rate**, subject to the prescribed conditions. This allowance is also reckoned for computing their daily rates of wages.

4.2 Limit on accumulation of leave

The total accumulation of leave is capped at **300 days**, the same ceiling as for regular Government employees. In other words, a CL-TS can accumulate earned leave up to a maximum of 300 days.

4.3 When leave is credited

Earned leave is credited **twice a year — on 1 January and 1 July** — on a pro-rata basis at the rate of one day for every ten days of work.

4.4 Wages and the 7th Central Pay Commission

On implementation of the 7th CPC, casual labourers with temporary status continue to receive wages with effect from **1 January 2016**, worked out on the basis of **Level 1 of the Pay Matrix** (the level for the erstwhile Group 'C' / MTS), provided they are matriculate and have undergone the requisite training.

CURRENCY NOTE — 8th Pay Commission

The 8th Central Pay Commission has been **constituted (Gazette notification dated 3 November 2025)**, with **Justice Ranjana Prakash Desai as Chairperson**, and an **18-month mandate**. As on June 2026 it is still in the consultation/data-collection stage and its recommendations have **not yet been implemented**. Until then, Level 1 of the 7th CPC Pay Matrix remains the basis for wage computation.

5. Termination of Service

Despite conferment of temporary status, the services of a casual labourer may be dispensed with by giving **one month's notice** in writing. Equally, a casual labourer with temporary status may quit by giving **one month's written notice**. Wages for the notice period are payable only for the days on which the worker is actually engaged on work.

6. General Conditions for Engagement of Casual Labourers

Separate from the temporary-status scheme, DoP&T's general instructions govern how and on what terms any casual labourer may be engaged. These are the operative day-to-day conditions.

1. Persons on daily wages should **not** be recruited for work of a regular nature.
2. Engagement may be made only for work that is casual, seasonal, intermittent, or not of a full-time nature, for which a regular post cannot be created.

3. Where the work entrusted to casual workers is the same as that of regular employees, the casual worker may be paid at the rate of **1/30th of the minimum of the relevant pay scale plus DA**, for eight hours' work in a day.
4. A casual worker may be given **one paid weekly off after six days** of continuous work.
5. Payment is restricted to the days on which the worker actually performs duty, plus the paid weekly off. In addition, a National Holiday is paid for if it falls on a working day for the casual worker.
6. In offices observing a **five-day week**, one day's paid weekly off is allowed provided the worker has put in a minimum of **40 hours** during that week.
7. Daily wages must not fall below the floor fixed under the **Minimum Wages Act, 1948** for the area concerned (a higher existing rate may be continued with the approval of the Financial Adviser).

7. Regularisation — The Path to MTS in the Department of Posts

Regularisation means final appointment to a regular MTS post. Here the difference between the general DoP&T scheme and the Department of Posts' own rules becomes critical, and this is the area where the position has changed most. Study this section carefully.

7.1 The general DoP&T rule (background)

Under the 1993 Scheme, **two out of every three vacancies** in the erstwhile Group 'D' (now MTS) cadre, in offices where the casual labourers worked, were to be filled from amongst casual workers with temporary status, in accordance with the extant recruitment rules. On regularisation, no substitute is appointed in the worker's place, as the worker held no post.

7.2 The position in the Department of Posts — the governing rules

In the Department of Posts, recruitment to MTS is governed not by the general scheme but by the Department's own **Multi Tasking Staff Recruitment Rules**. The current chain of rules is:

- Principal Rules — **MTS Recruitment Rules, 2018**, G.S.R. 781(E) dated 16 August 2018;
- First amendment — G.S.R. 850(E) dated 15 November 2019;
- Second amendment (current) — **MTS Recruitment (Amendment) Rules, 2023**, G.S.R. 639(E) dated 30 August 2023.

7.3 Current vacancy structure (after the 2023 amendment)

The 2023 amendment unified the MTS cadre and recast the method of recruitment into a strict order of priority — a “waterfall.” Vacancies are offered to each category in turn; only the vacancies left unfilled by a category flow down to the next.

Order	Category	Basis
1	Casual Labourers — 100% first	Seniority-cum-fitness, in a fixed sequence: (a) CLs of the recruiting Division/Unit with temporary status; then (b) CLs engaged on or before 1.9.1993 working 8 hours/day; then (c) part-time CLs engaged on or before 1.9.1993; then (d)–(f) the same three categories drawn from all other Divisions/Units of the Circle. Any vacancy still unfilled flows to Order 2.
2	Gramin Dak Sevak (GDS)	(a) 50% by seniority-cum-fitness from willing GDS of the recruiting Division/Unit with 5 years’ regular service; and (b) 50% by competitive examination restricted to GDS of the recruiting Postal Circle with 3 years’ regular service. Unfilled GDS vacancies flow to Order 3.
3	Open market	By direct recruitment from the open market, as per the scheme circulated by the Department of Posts from time to time.

In plain terms: eligible casual labourers (with temporary status) are absorbed **first**. Because the casual-labour scheme closed in 1993, this pool is small and steadily shrinking; as it is exhausted, the cadre is effectively filled by GDS (half by seniority and half by examination) and, finally, by open-market recruitment.

8. Legal and Judicial Safeguards

The principal protection comes from *Union of India & Anr. vs. Mohan Pal* [SLP (Civil) No. 2224/2000]. The Supreme Court held that casual labourers who have acquired **temporary status shall not be removed** from service merely because surplus casual workers are available. Removal is permissible only where there is **serious misconduct or violation of service rules**, in which case the employer may dispense with the services of a CL-TS like any other employee.

CURRENCY NOTE — flagged for verification

A recent Supreme Court decision (2025), reported in legal media, has held that temporary-status casual labourers may be entitled to pensionary benefit even without formal

regularisation, on the facts of that case. As the full citation could not be independently confirmed from a primary source at the time of writing, this is flagged as a **developing position**; students should verify the exact case name and ratio before relying on it in an answer.

9. At-a-Glance Revision (Key Numbers and Dates)

Point	Figure / Reference
Scheme notified / in force	10.09.1993 / w.e.f. 01.09.1993
Governing DoP&T O.M.	No. 51016/2/90-Estt.(C) dated 10.09.1993
Qualifying service for temporary status	240 days (206 days for 5-day week)
Earned leave	1 day per 10 days; max accumulation 300 days
Leave credited	1 January & 1 July
Maternity leave	180 days — Rule 43, CCS (Leave) Rules
Paternity leave	15 days — Rule 43-A, CCS (Leave) Rules
Service counted for retirement	50% of temporary-status service
GPF / advances eligibility	After 3 years; two sureties
Notice for termination	1 month (either side)
Casual wage rate (same work)	1/30th of minimum pay + DA, for 8 hours
Weekly off	1 paid off after 6 days (or 40 hours in 5-day week)
DoP MTS rules (current)	GSR 781(E)/2018, as amended by GSR 850(E)/2019 & GSR 639(E)/2023
MTS intake order (current)	Casual Labourers 100% → GDS (50% seniority + 50% exam) → open market
Pay basis	Level 1, 7th CPC (8th CPC constituted 03.11.2025, not yet implemented)

10. Sources and Currency

This brochure has been prepared from the primary instruments listed below. Where a position has changed, the latest in-force version has been adopted and the change explained in the relevant callout.

- Casual Labourers (Grant of Temporary Status and Regularisation) Scheme of Government of India, 1993 — DoP&T O.M. No. 51016/2/90-Estt.(C) dated 10.09.1993 (pursuant to CAT, Principal Bench, judgment dated 16.02.1990 in Raj Kamal & Others vs. Union of India).
- DoP&T consolidated instructions on Casual Labour, 2020 (and the constituent O.Ms on engagement, wages and additional benefits, including O.M. No. 49014/2/86-Estt.(C) dated 07.06.1988 and O.M. No. 49014/3/97-Estt.(C) dated 01.08.1998).
- Department of Posts O.M. No. 2-10/88-PE-I dated 04.02.1997 (ban on engagement of casual labourers), reiterated by O.M. No. 2-1/2002-PE-I dated 14.02.2002.
- CCS (Leave) Rules, 1972 — Rule 43 (maternity leave, 180 days) and Rule 43-A (paternity leave, 15 days).
- Department of Posts (Multi Tasking Staff) Recruitment Rules, 2018 — G.S.R. 781(E) dated 16.08.2018; as amended by G.S.R. 850(E) dated 15.11.2019 and G.S.R. 639(E) dated 30.08.2023.
- Supreme Court — Union of India & Anr. vs. Mohan Pal, SLP (Civil) No. 2224/2000.
- Pension framework — National Pension System; DoP&PW O.M. dated 03.03.2023 (one-time option for CCS (Pension) Rules); Unified Pension Scheme operational from 01.04.2025 (DFS notification dated 24.01.2025; PFRDA regulations dated 19.03.2025).
- 8th Central Pay Commission — constituted vide Gazette notification dated 03.11.2025; recommendations awaited.

Currency: the statutory position stated in this booklet has been verified as in force as on **June 2026**. As Rules and Orders are amended from time to time, always confirm the current position against the original Gazette notification or Government Order before official use.